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General Comment

While the current administration's priorities are focused on protecting and advancing America's critical domestic economy, it is also crucial that any technology advanced in the pursuit of these goals is leveraged fairly, openly, and without bias, aligning with president Trump's actions to advance AI.

The current industry-wide implementation of AI suffers from extreme directionlessness, both at the application and regulatory levels. A major aspect of this is in regards to the perpetual legal limbo of AI implementation, where LLMs / DL / NN / ML heavily lean on data training sets that include substantial amounts of copyrighted material. Moreover, the outputs of AI-associated tools has already received substantial adjudication. Thaler v. Perlmutter, based on the ruling of Burrow-Giles Lithographic v. Sarony, has already ruled substantively on this matter, drawing on the historical recognition of human creativity as central to the copyright process. At the input end, Thomson Reuters Enterprise Centre GMBH v. Ross Intelligence Inc. has further ruled that AI-generated outputs, when based upon training data made of copyrighted and personal material obtained without permission from authors, does not constitute fair use.

To meaningfully develop AI technologies - which can become essential tools in areas like data science and drug discovery, where the process parsing through billions of nodes of data can be exponentially accelerated by AI - a meaningful set of guidelines should be established. Aligning with the goals of the NSTC to advance this Critical and Emerging Technology (CET), the fundamental question of AI copyright should be federally and definitively answered. America's rich and globally-dominant artistic outputs and technological leadership can exist in parallel, but only under clearly stated federal guidance.

To advance AI technologies, it should be firmly established that the data training sets of LLMs / DL / NN / ML must abide by American copyright standards. Implementing this simple rule would have meaningful and impactful consequences. Such a standard would ensure that technological leaders in the United States would finally have clear guidance on how to comply with national standards to ensure that their outputs are legally viable, while also protecting America's copyright system. Specifically, any AI Action Plan should provide specific guidance on how data training sets should be constructed out of inputs complying with national standards on copyrighted materials, avoiding the pitfalls of relying on an incomplete patchwork of court decisions that have not yet fully addressed every fact of this issue.

America can and should advance AI technologies, while protecting creators and other copyright holders, through such standards.